

## **Wreningham Primary School, Audit Report**

**Audit Date: 12 March 2020**

**Report: Year 2 visit 2**

**DPE: Linda Mortimer**

**School member: Headteacher: Rob Jones / School Secretary: Nuria Sharp**

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### **1. Visit details**

Details highlighted at the time of the last visit were discussed. GDPR documents and policies were also reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 6 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 5.1 below).

### **Review actions recommended at time of previous visit – 4.11.19**

**Recommendations made during previous visit have been actioned and the following is noted:**

**GDPR Training:** Group training has taken place to complete the GDPR 101 online module. This was carried out over 2 twilight sessions in February 2020. LM pointed out that this will not register against each staff's training record on Knowledge Bank.

**Best Practice Checklists:** Following a review, it was noted that minimal progress had been made on completion of the Best Practice Checklists.

**Compliance Manager:** To date the school has not used Compliance Manager to upload key documents.

**Privacy Notice:** Still requires a more detailed list of third parties with whom the school shares PII data. This will be discussed at Cluster level and a decision taken on the best way forward.

**Noted Risk:** ICT support provided to the school. Current arrangements will change shortly and NCC ICT Solutions have been awarded a contract at Bronze level.

### **Audit walk findings and recommendations made on 12.3.20**

**Policies:** The possibility of operating with more policies at a Cluster level was discussed (Rob Jones is the Chair of the Cluster) and will be shared at a meeting with the Cluster Administrator in April 2020. A decision will be taken, following agreement with Cluster Headteachers. This decision will cover the standard policies as recommended by DPE for adoption ie Records Management and Information Classification Policy.

The FOI Publication Scheme will be also be discussed. However, DPE are drafting a generic FOI Publication Scheme, which should be available after Easter.

**Other GDPR Guidance:** DPE recommend that the Data Breach Procedure, Subject Access Request Procedure, Photo and Video Guidelines, Working Away from School and Clear Desk Policy are shared with staff. The Clear Desk Policy was shared with the Headteacher and the School Business Manager at the time of the audit, via Compliance Manager.

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**Action:** Please share these procedures and guidance with staff via Compliance Manager by the end of Summer Term 2020

**Best Practice Checklists:** Were reviewed and some were completed at the time of the Audit.

**Action:** School to continue to review these key areas of GDPR compliance and continue to complete the checklists.

**SEND Record Management:** All SEND paperwork is in hard copy format and retained securely with limited access.

**Management of Student Assessment:** All student assessment is in hard copy format and kept securely.

**Management of Communication with Parent:** The school does not use any third-party provider to enable communication with parents (email or texting service). All communication is managed by the School Office and via email.

**FOI Policy:** The school has used the DPE model policy and will be presented to Governors at their next meeting.

**Action:** Present policy to Governors for ratification on the 30.3.20. The agreed FOI Policy should be published on the school website.

**FOI Publication Scheme:** This was discussed and the school will wait until a decision is made by the Cluster and also review the model DPE Publication Scheme once available. More guidance can be found under the News tab on the Knowledge Bank.

**Staff Training:** A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their training every 2 years.

**Naming convention:** All exercise books, work trays, files, displays and coat pegs use first names only.

**Laptops:** Are **not** encrypted however they are password protected and accounted for on a regular basis. School is going to implement encryption, if possible.

**Actions:** Investigate feasibility of encryption for existing laptops. School to seek advice from ICT Solutions.

Share Working Away from School Policy (downloaded at time of visit) with all staff who work at home. This can be managed via Compliance Manager on Knowledge Bank.

**Server:** The school is moving to cloud based computing through the implementation of Office 365. This is being managed by ICT Solutions.

**School Kitchen:** Operated by Norse. All allergy information is kept securely.

**Staffroom:** Staff pigeonholes were checked and the following was identified; Dinner Registers dated September 19, showing both names, Library Book reminders with both names, Parents Evening appointments, Tag Rugby permission slips with both names and parent contact details and also staff appraisal paperwork.

**Action:** Remind staff of the importance of data minimization and to use children's first names only. Remind staff not to store paperwork including PII data in staff pigeonholes. Pigeonholes should be cleared regularly.

**First Aid Records:** Records are stored securely.

**Medical Student Care Plans:** Are on clear display in the staffroom and include the following:

- 2 x Medical Special Needs plans including children's photos
- 1 x Intimate Care Plan including child's photo
- 2 x Allergy Information Sheets including children's photos
- 1 x Medical Conditions list – providing details of conditions but without children's photos

Parents have given permission for this information to be on display in the interest of Health and Safety, although this is contrary to the practice that DPE recommends.

**Class 2:** Red Folder containing children's care plans was readily available. Pink Folder marked "Very Important Folder" containing SEND register, student information and performance manager paperwork was readily available. Class laptop left logged on and unattended.

**Action:** Ensure that such folders are stored securely at the end of the day, when the classroom is left unattended and also during school holidays.

**Action:** Remind staff of the importance of locking computers when left unattended.

**Reception & Year 1 Class:** Intimate Care Plan and child's assessment folder easily accessible on windowsill.

**Action:** Please ensure that such information is stored securely at all times.

## 2. Compliance actions that should now be completed

### Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

### The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

### 2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016\\_IRMS\\_Toolkit\\_for\\_Schools\\_v5\\_Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf)

- DfE toolkit  
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment\\_data/file/747620/Data\\_Protection\\_Toolkit\\_for\\_Schools\\_OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

## 2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

## 2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

## 2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

## 3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

## 4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

## 5. Next steps

### Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

### 5.1. Data Protection Impact Assessments (DPIA)

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When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

## **6. Norfolk County Council Summer GDPR audits**

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>